Syllabus

NATIONAL PARK SERVICE ET AL. *v.* NATIONAL TRUST FOR HISTORIC PRESERVATION IN THE UNITED STATES ET AL.

ON APPLICATION FOR STAY

No. 26A203. Decided August 31, 2026

The federal government commenced a project to replace the East Wing of the White House with a new structure that includes an underground military installation and an above-ground ballroom. The National Trust for Historic Preservation in the United States sued and moved for a preliminary injunction to halt construction. The district court granted the motion and preliminarily enjoined most of the above-ground construction. The United States Court of Appeals for the District of Columbia Circuit upheld the injunction. The government then filed a motion in this Court seeking a stay of the injunction pending a forthcoming petition for a writ of certiorari and any further proceedings in this Court. THE CHIEF JUSTICE issued an administrative stay to facilitate review and referred the matter to the Court.

Page Proof Pending Publication

Held: The application for a stay is granted. The government is likely to succeed in showing that the Trust lacks Article III standing, and the remaining stay factors favor relief. The Trust rests its claim to standing on a single member who objects to the planned ballroom's "scale," "height," and "massing" and claims injury to her "aesthetic, cultural, and historical interests." App. to Application 75a. Mere offense, disagreement, or distaste, however, does not qualify as a concrete and particularized injury under Article III. See, *e. g.*, *FDA* v. *Alliance for Hippocratic Medicine*, 602 U. S. 367, 390, n. 3; *Valley Forge Christian College* v. *Americans United for Separation of Church and State, Inc.*, 454 U. S. 464, 485. Neither the Trust's reliance on environmental cases nor its member's expertise in historic architecture alters that conclusion.

The government has also shown likely irreparable harm and that the equities tip in its favor. It submitted unrebutted evidence demonstrating that halting the integrated construction project would create national-security, operational, and construction-related harms. Those harms substantially outweigh the injury the Trust asserts.

The Court does not decide the legality of the East Wing project. It holds only that the government is likely to prevail on standing and that the remaining stay factors favor relief. The district court's injunction